

## 25STCV31594 25STCV31594

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Case Number: 25STCV31594 Hearing Date: July 29, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: July 29, 2026

Case Name: In Won Kang v. Cedars-Sinai

Medical Center, et al.

Case

No.: 25STCV31594

Matter: Demurrer with Motion to Strike

Moving

Party: Defendant Cedars-Sinai

Medical Center

Responding Party: Plaintiff In Won Kang

Tentative

Ruling: Defendant Cedars-Sinai

Medical Center's demurrer is overruled.

Defendant

Cedars-Sinai Medical Center's motion to strike denied.

On October 29,

2025, Plaintiff In Won Kang ("Plaintiff")

filed this action against Defendants Cedars-Sinai Medical Center ("Cedars"), a California non-profit corporation, Country Villa Westwood Convalescent Center, LLC doing business as Westwood Post Acute Care (collectively "Defendants"), and Does 1 through 10. The Complaint alleged three causes of action against Defendants for: (1) dependent adult abuse and neglect per Welfare and Institutions Code section 15600 et seq.; (2) negligent hiring, training, and supervision; and (3) negligence per se/violation of statutory and regulatory duties. Plaintiff alleges that Defendants did not provide proper care to him when he was admitted into Cedars and while he was immobile, which resulted in severe ulcers.

On April 9, 2026, the Court sustained Cedars's demurrer as to all three causes of action with leave to amend only as to the first cause of action.

Plaintiff

filed a First Amended Complaint ("FAC") alleging only one cause of action for dependent adult abuse and neglect per Welfare and Institutions Code section 15600 et seq.

Cedars

demurs to Plaintiff's cause of action and moves to strike the FAC. Plaintiff opposes.

Legal Standard

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading by raising questions of law. (Postley v. Harvey (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) The court " 'treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law . . . ' " (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.) In applying these standards,

the court liberally construes the complaint to determine whether a cause of action has been stated. (Picton v. Anderson Union High School Dist. (1996) 50 Cal.App.4th 726, 733.)

“The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436.) “Immaterial” or “irrelevant” matters include allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subds. (b)(1)-(3).)

Analysis

Meet and  
Confer

Pursuant to Code of Civil Procedure section 430.41, “a demurring party is required to meet and confer in person, by telephone, or video conference with the party that filed the pleading. . . .” (Code Civ. Proc. § 430.41, subd. (a).) A moving party in a motion to strike must meet and confer before filing the motion. (Code Civ. Proc. § 435.5, subd. (a).)

Cedars contends that it met and conferred with Plaintiff by letter. (Moulin Decl., ¶8.) However, this is not in accordance with Code of Civil Procedure sections 430.41, subdivision (a) and 435.5, subdivision (a). Thus, the parties have not fulfilled their meet-and-confer obligations. However, in the interest of judicial efficiency, the Court will address the merits of Cedar’s demurrer and motion to strike.

Demurrer

Cedars demurs to Plaintiff’s only cause of action for dependent abuse/neglect on the

grounds that Plaintiff fails to allege sufficient facts and uncertainty.

#### Uncertainty

Per Code of Civil Procedure section

430.10, subdivision (f), a demurrer must be sustained if a pleading is uncertain. (Code Civ. Proc., § 430.10, subd. (f).) The term uncertain means “ambiguous and unintelligible.” (Ibid.) However, demurrers for uncertainty will not be sustained unless “the pleading is so incomprehensi[ve] that a defendant could not reasonably respond.” (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695 , quoting Mahan v. Charles W. Chan Ins. Agency, Inc. (2017) 14 Cal.App.5th 841, 848, fn.3 (A.J. Fistes Corp.).)

In looking

at the FAC as a whole, it is not incomprehensible. The FAC alleges sufficient facts for Cedars to respond.

Thus, the

Court overrules the demurrer on this basis.

#### Failure to Allege Sufficient

Facts

First Cause of

Action—Dependent Adult Abuse/Neglect

The Elder

Abuse Act makes certain enhanced remedies available to a plaintiff who proves abuse of an elder, i.e., a “person residing in this state, 65 years of age or older,” or a dependent within the meaning of Welfare and Institutions Code section 15610.23. (Welf. & Inst. Code, §§ 15610.27, 15610.23.) In particular, a plaintiff who proves “by clear and convincing evidence” both that a defendant is liable for physical abuse, neglect, or financial abuse (as these terms are defined in the Act) and that the defendant is guilty of ‘recklessness, oppression, fraud, or malice’ in the commission of such abuse may recover attorney fees and costs. (Welf. & Inst. Code, § 15657, subd. (a).)

Specifically,

the plaintiff must allege “facts establishing that the defendant: (1) had responsibility for meeting the basic needs of the elder or dependent adult, such as nutrition, hydration, hygiene, or medical care [Citation.]; (2) knew of conditions that made the elder or dependent adult unable to provide for his or her own basic needs [Citation.]; and (3) denied or withheld goods or services necessary to meet the elder or dependent adult's basic needs, either with knowledge that injury was substantially certain to befall the elder or dependent adult (if the plaintiff alleges oppression, fraud or malice) or with conscious disregard of the high probability of such injury (if the plaintiff alleges recklessness) [Citation.]” (Carter v. Prime Healthcare Paradise Valley LLC (2011) 198 Cal.App.4th 396, 406–407 (citations omitted.) (Carter).) Also, “[f]acts, not conclusions, must be pleaded.’ Further, where, as here, statutory remedies are invoked, the facts “must be pleaded with particularity” when alleging fraudulent or reckless conduct.” (Id. at p. 410.)

“[A]ny cause of action for injury or damage against a health care provider, as defined in [s]ection 340.5 of the Code of Civil Procedure, based on the health care provider’s alleged professional negligence, shall be governed by those laws which specifically apply to those professional negligence causes of action.” (Welf. & Inst. Code, §§ 1567.2.) “The Elder Abuse Act does not apply to simple or gross negligence by health care providers.” (Worsham v. O’Connor Hospital (2014) 226 Cal.App.4th 331, 336 (Worsham).) “The difference in focus between the Elder Abuse Act and MICRA “can be clarified by considering the differing types of conduct with which section 15657 and MICRA are concerned. As discussed, section 15657 concerns ‘neglect[,]’ ‘physical abuse[,]’ and ‘fiduciary abuse.’” [Citation.] Neglect within the meaning of the Elder Abuse Act “does not refer to the performance of medical services in a manner inferior to “the knowledge, skill and care ordinarily possessed and employed by members of the profession in good standing” [citation], but rather to the failure of those responsible for attending to the basic needs and comforts of elderly or dependent adults, regardless of their professional standing, to carry out their custodial obligations.” [Citation.] It would make no sense if determining whether a recklessly neglectful custodian of an elderly person was subject to section 15657 simply depended on the custodian's licensing status.” (Benun v. Superior Court (2004) 123 Cal.App.4th 113, 123.) “Delaney makes clear that a cause of action for custodial elder abuse against a health care provider is a separate and distinct cause of action from one for professional negligence against a health care provider. It follows that egregious acts of elder abuse are not governed by laws applicable to negligence.

Specifically, section 15657.2 was enacted “to make sufficiently clear that ‘professional negligence’ was to be beyond the scope of section 15657.” (Id. at p. 124.)

Cedars

demurs on the same two arguments against Plaintiff’s FAC as it did to the Complaint. Cedars argues that Plaintiff must allege specific facts. (Covenant Care, Inc. v. Superior Court (2004) 32 Cal.4th 771, 790; Carter, supra, 198 Cal.App.4th at p. 407.) Cedars also contends that Plaintiff is improperly trying to seek relief under the Elder Abuse Act, when at most Plaintiff’s allegations are sound in negligence.

In

opposition, Plaintiff argues that pursuant to Welfare and Institutions Code Section 15610.57, Winn, Sababin, and Feinmore, he has alleged a viable cause of action.

Welfare and

Institutions Code Section 15610.57, subdivision (a)(1) defines neglect as the “failure of any person having the care or custody of an elder or a dependent adult to exercise that degree of care that a reasonable person in a like position would exercise.” (Welf. & Inst. Code, § 15610.57, subd. (a)(1).) Welfare and Institutions Code Section 15610.57, subdivision (b)(2) lists that “[f]ailure to provide medical care for physical and mental health needs.” (Id. at subd. (b)(2).)

“Ultimately, the focus of the statutory language is on the nature and substance of the relationship between an individual and an elder or a dependent adult. This focus supports the conclusion that the distinctive relationship contemplated by the Act entails more than casual” or limited interactions.” (Winn v. Pioneer Medical Group, Inc. (2016) 63 Cal.4th 148, 158.)

Plaintiff

argues that per Stewart, he was under the custodial care of Cedars for 220 days. In Stewart, the court determined that the hospital was in a custodial relationship with an admitted patient based on his condition. (Stewart v. Superior Court (2017) 16 Cal.App.5th 87, 102.) The court reasoned that upon admission the patient was experiencing confusion, would only mumble and grunt, required medical assistance “including a g-tube, to consume adequate calories,”

and his health was “poor enough that he required a pacemaker on an emergency basis.” (Ibid.)

Here, the

FAC alleges that Plaintiff suffered a nontraumatic intracerebral hemorrhage which resulted in acute encephalopathy and altered mental status. (FAC, ¶ 7.) The FAC also alleges a series of medical events that ultimately resulted in Plaintiff’s “major neurocognitive disorder due to vascular disease with behavioral disturbance, characterized by [Cedars] as severe; persistent encephalopathy with cognitive deterioration; right-sided hemiparesis; oropharyngeal dysphagia; severe protein-calorie malnutrition; and persistent agitation and altered consciousness.” (FAC, ¶¶ 8-9.) Ultimately, Plaintiff was left “bedbound, immobile, cognitively impaired, dependent on a PEG tube for nutrition, and unable to communicate, follow commands, verbalize needs, or report pain,” and Cedars had determined that Plaintiff required total assistance. (FAC, ¶ 10-11.)

In reply,

Cedars argues that the dispute is not the number of days Plaintiff was in the hospital but that Plaintiff’s claim is sound in professional negligence, and the cause of action is not adequately pleaded.

The Court

finds that Stewart is applicable, and under Welfare and Institutions Code Section 15610.57, a custodial relationship is alleged.

Plaintiff

also argues that Cedars’ argument that it can only be negligent because it provided some medical care, not a complete lack of care. Plaintiff relies on both Fenimore and Sababin. In Fenimore, the Court held the failure to provide medical care is not the only way a hospital can be liable for neglect under the Act. (Fenimore v. Regents of University of California (2016) 245 Cal.App.4th 1339, 1350.) The Fenimore court addressed that neglect defined under Welfare and Institutions Code Section 15610.57, subdivisions (a), and (b)(2), and reasoned that “violations of standards of care set by health facility regulations may provide a basis for finding the requisite negligent failure. Reckless understaffing might be neglectful under the Act even if it is not a fundamental failure to provide medical care.” (Id. at p. 1351.)

Plaintiff

argues that his case is akin to Sababin because Cedars was aware of his condition and failed to reposition or protect him. The FAC alleges that on the third day of admittance to Cedars, a nurse practitioner entered two formal standing orders that instructed staff of a “Pressure Injury Protocol” that required staff to reposition Plaintiff every two to four hours. (FAC, ¶¶ 18-22.) Plaintiff also alleges that Cedars’ understaffing contributed to him not being repositioned, and staff failed to implement the protocols the hospital had in place. (FAC, ¶¶ 26, 32.) In Sababin, when ruling on a motion for summary adjudication, the court determined that a triable issue of material fact existed as to whether the employee’s conduct constituted neglect. (Sababin v. Superior Court (2006) 144 Cal.App.4th 81, 90.) The Court reasoned that, based on the evidence, a trier of fact could determine that the employees failed to provide plaintiff with medical care for physical needs and to protect plaintiff from health and safety hazards. (Ibid.) Moreover, the Court in Sababin also states that even if some care is provided, it does not absolve a care facility of liability for dependent abuse. (Ibid. [“For example, if a care facility knows it must provide a certain type of care on a daily basis but provides that care sporadically, or is supposed to provide multiple types of care but only provides some of those types of care, withholding of care has occurred.”].)

Cedars’s

final argument is that Plaintiff does not allege any facts to demonstrate recklessness. “In order to obtain the remedies available in section 15657, a plaintiff must demonstrate by clear and convincing evidence that defendant is guilty of something more than negligence; he or she must show reckless, oppressive, fraudulent, or malicious conduct. The latter three categories involve “intentional,” “willful,” or “conscious” wrongdoing of a “despicable” or “injurious” nature.” (Delaney v. Baker (1999) 20 Cal.4th 23, 31.) “Recklessness, unlike negligence, involves more than “inadvertence, incompetence, unskillfulness, or a failure to take precautions” but rather rises to the level of a ‘conscious choice of a course of action ... with knowledge of the serious danger to others involved in it.’” (Id. at p. 31–32.)

As

addressed above, Plaintiff alleges that Cedars knew of Plaintiff’s inability to reposition himself and that he was bedridden. (FAC, ¶ 69.) Plaintiff also alleges that the staff were on notice of the standing orders, and failed to implement the plan consistently. (FAC, ¶ 42.)



Thus, as written,  
sufficient facts are alleged for Plaintiff's cause of action.

Therefore,  
the Court overrules Cedar's demurrer as to Plaintiff's only cause of action.

Motion  
to Strike

Cedars  
moves to strike the following portions of Plaintiff's FAC: (1) ¶ 27, Ins. 11-13; (2) ¶ 28, Ins. 14-18; (3) ¶ 29, Ins. 19-23; (4) p. 19, ln. 11; (5) ¶ 85, Ins. 3, 5, 9; (6) prayer for relief for attorney's fees; and (7) prayer for relief for punitive damages.

Punitive Damages

Cedars  
argues that Plaintiff's request for punitive damages is procedurally improper pursuant to Code of Civil Procedure section 425.13 subdivision (b) because since Plaintiff's case is one of negligence, Plaintiff is required to file a noticed motion. However, in reply, Cedars concedes that if the Court finds that Plaintiff has alleged sufficient facts to establish a viable cause of action under the Elder Abuse Act, then Plaintiff is not required to comply with Code of Civil Procedure section 425.13.

Cedars  
argues that the FAC fails to allege facts to support a request for punitive damages per Civil Code section 3294.

The  
complaint must set forth the elements as stated in the general punitive damage statute, Civil Code section 3294. These statutory elements include allegations that the defendant has engaged in oppression, fraud, or malice. (Civ. Code § 3294, subd. (a).) "'Malice' means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code, § 3294 subd. (c)(1).)

The claim

for punitive damages may not rest on conclusory allegations of oppression, fraud, or malice; instead, it must be supported by factual allegations that warrant such a conclusion. (Smith v. Superior Court (1992) 10 Cal. App. 4th 1033, 1041-1042. (Court of Appeal issued peremptory writ directing trial court to issue order striking plaintiff's prayer for punitive damages because "[t]he sole basis for seeking punitive damages are ... conclusory allegations" which were "devoid of any factual assertions supporting a conclusion [defendants] acted with oppression, fraud or malice.")

Cedars

argues, in a conclusory manner, that the FAC contains conclusory phrases and usage of statutory language. However, Plaintiff is not forbidden from using language from the statute if there are allegations to support the language used. (See Perkins v. Superior Court (1981) 117 Cal.App.3d 1, 6.) Based on the Court's review of the allegations within the FAC, there are sufficient facts alleged in the FAC to support Plaintiff's request for punitive damages.

Thus, the

Court denies Cedar's motion to strike punitive damages.

Attorney's Fees

Cedars

moves to strike Plaintiff's prayer for attorney's fees, but does not provide any basis to strike the prayer for attorney's fees.

Thus, the

Court denies Cedars's motion to strike Plaintiff's request for attorney's fees.

Staffing Allegations

Cedars

argues that Plaintiff makes conclusory allegations about staffing that are false, irrelevant, and improper. However, Cedars argument is conclusory and does not support its argument.

Thus, the

Court denies Cedars's motion to strike staffing allegations.

Therefore,  
the Court denies Cedars's motion to strike in its entirety.

Conclusion

Cedars's  
demurrer is overruled.

Cedars's  
motion to strike is denied.